

Yashwant Waman Ubale vs Shubhangi Yashwant Ubale And Anr on 7 March, 2026

Author: Vibha Kankanwadi

Bench: Vibha Kankanwadi

2026:BHC-AUG:10720-DB

913-FCA-70-23.od

{1}

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT AURANGABAD

FAMILY COURT APPEAL NO.70 OF 2023

Yashwant Waman Ubale,
Age: 34 years, Occu.: Agriculture,
R/o. Varwanti, Tq. & Dist. Osmanabad.

... Appellant

Versus

1. Shubhangi W/o. Yashwant Ubale
Age: 29 years, Occu.: Household,
R/o. Varwanti, Tq. & Dist. Osmanabad
At present : R/o. Tirth (Kh.),
Tq. Tuljapur, Dist. Osmanabad.

2. Meghraj Nivruti Sable,
Age: 44 years, Occu.: Agriculture,
R/o. Kakramba, Tq. Tuljapur,
Dist. Osmanabad.

... Respondents

.....
Mr. Vivekanand B. Deshmukh, Advocate for Appellant
.....

CORAM : SMT. VIBHA KANKANWADI AND
HITEN S. VENEGAVKAR, JJ.

DATED : 07 MARCH, 2026 JUDGMENT [Per Smt. Vibha Kankanwadi, J.]

1. The present appeal has been filed by the husband/original petitioner challenging the judgment and decree passed in Petition A No. 79 of 2021 (Old H.M.P. No. 134 of 2018), decided on 09.06.2023 by the learned Judge, Family Court, Osmanabad.

2. The petition was filed under Section 13(1)(i)(ia)(ib) of the Hindu Marriage Act on the ground of cruelty.

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3. The fact which is not in dispute is that the petitioner and respondent No. 1 got married on 24.04.2012, and on the date of the petition, the marriage was still subsisting. They are blessed with a daughter born on 07.05.2013.

4. The petitioner has contended that he was working in a newspaper office. He was also helping his brother in his photo studio. After the marriage, respondent No. 1 resumed cohabitation. She used to express her displeasure and anger on petty grounds. The petitioner was residing in a joint family consisting of parents of the petitioner, his brother, sisters, cousin brothers and the sisters-in-law. Respondent No.1 never mixed with the family of the petitioner. She used to raised quarrels with the petitioner whenever he used to be phone call of a lady for photograph. Some quarrel took place when one girl from their village was impressed by the petitioner. When the conduct of respondent No. 1 was brought to the notice of her family members, she was advised by them; however, respondent No. 1 did not change her behavior. Rather, respondent No. 1 filed a complaint with the Women Grievance Redressal Forum, Osmanabad. The said matter was settled, and thereafter respondent No. 1 agreed to cohabit with the petitioner on the condition that they would reside separately from the other family members. The petitioner, therefore, took a room on rent near the house of the maternal aunt of respondent No. 1; however, her behavior still 913-FCA-70-23.odt {3} did not improve. She used to throw her daughter on the person of the petitioner and push her, thereby harassing the daughter. She repeatedly threw the mangalsutra at the petitioner, thereby showing disrespect to him. The petitioner had also tried to take her to a doctor for treatment regarding her temperament, but she refused. Thereafter, respondent No. 1 filed various proceedings in the Tuljapur Court, i.e., M.A. Nos. 91 of 2015 and 100 of 2015, and also filed R.C.C. No. 783 of 2015 for the offence punishable under Section 498-A of the IPC against the petitioner and his family members. In this manner, the petitioner was harassed by respondent No. 1. The petitioner also avers that during the pendency of the court matters, respondent No. 1 voluntarily joined the company of the petitioner on 15.03.2018. She told him that she was not pressing the matter for maintenance and assured him that she would improve herself. Taking into consideration the said assurance, the petitioner allowed her to join his company, and they were then residing in their joint family; however, within 2 to 4 days, she again started quarreling.

5. It is the further contention of the petitioner that in the month of May 2018, he as well as his brother received a call from respondent No. 2, who disclosed to them his illicit relations with respondent No. 1. The petitioner avoided taking any decision at that time, and thereafter respondent No. 1 cohabited with him properly for about one and a half 913-FCA-70-23.odt {4} months. Thereafter, she went to her parental home. The petitioner then states that he found a memory card in his cupboard and, upon checking the recorded conversations in the files in the said card, he came to know about the illicit relations between respondents No. 1 and 2. He felt cheated and, therefore, states that he had no alternative but to sever the marital ties with respondent No. 1.

6. Respondent No. 1 has filed her written statement and denied all other contentions. She has stated that her brother expired on 07.12.2017, and in the meantime, there were talks of cohabitation between her and the petitioner. The petitioner had assured her that he would not harass her, and

therefore, taking into consideration the future of her daughter, she agreed to cohabit with the petitioner. The petitioner had come to receive her, and she went along with her daughter for cohabitation. A proper mediation had taken place through a mediator known to them. Thereafter, they celebrated the birthday of their daughter; however, thereafter she was abused by the family members of the petitioner. She was driven out of the house. Even the petitioner himself had taken her mangalsutra and earrings worth about 1½ to 2 tolas and dropped her at the hotel of one Pawar without making any further arrangement. She tried to call him, but his phone was switched off. In the meantime, she came to know that she was pregnant for the second time and tried to contact the petitioner and 913-FCA-70-23.odt {5} informed the said fact to the petitioner and his family members, but they were not in a mood to listen. Thereafter, she gave birth to a baby boy on 01.01.2019. When the said fact was informed to the petitioner, he abused her on the phone. She has categorically denied the allegations regarding illicit relations.

7. Taking into consideration the rival pleadings, evidence has been led only by the petitioner's side. Respondents No. 1 and 2 have not led any evidence. After hearing the submissions of both the parties, the learned Judge of the Family Court dismissed the petition by holding that the petitioner failed to prove that respondent No. 1 had immoral relations with respondent No. 2. The petitioner also failed to prove that respondent No. 1 harassed him as well as deserted him for a period of two consecutive years before filing the petition.

8. Taking into consideration the rival submissions, the following points arise for our determination:

- (i) Whether the petitioner has proved the alleged illicit relationship between respondents No. 1 and 2.
- (ii) Whether the petitioner has proved that the conduct of respondent No. 1 towards him amounts to cruelty and desertion without any sufficient ground.

9. All the points are taken up for consideration together to avoid repetition.

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10. The learned advocate appearing for the petitioner has taken us through the memo of the petition, written statement, copies of the depositions, as well as the judgment and decree. He submits that respondents No. 1 and 2 have not led any evidence. The petitioner has examined himself as well as his brother to support his case; therefore, their evidence has gone unchallenged. All the facts leading to cruelty as well as the allegations regarding illicit relations have not been specifically refuted by the respondents, and therefore, the learned Trial Judge ought to have granted the decree of divorce. The testimony of the petitioner and his brother corroborates each other's contentions and statements, and therefore, when there is evidence on record, the petition ought not to have been dismissed.

11. Here, even after due service of the appeal, neither respondent No. 1 nor respondent No. 2 has appeared in this case. In such circumstances, this Court is required to consider the evidence on

record and examine whether it has been properly and legally scrutinized by the trial Court. What is not in dispute is that before the present petition came to be filed, respondent No. 1 had already filed three proceedings, i.e., M.A. No. 91 of 2015, M.A. No. 100 of 2015 and R.C.C. No. 783 of 2015, being a complaint under Section 498-A of the IPC. This fact has been admitted by the petitioner in his cross-examination. One of the applications appears to be under the Domestic Violence Act, and in the 913-FCA-70-23.odt {7} cross-examination it has been admitted that the Tuljapur Court had allowed the said application and an order granting maintenance was passed against him. He has also admitted that respondent No. 1 has not filed any execution proceedings pursuant to the said maintenance order. He further admits in the cross-examination that during the said period, i.e., when respondent No. 1 was residing separately with her parents, they were talking on the phone and, as per those conversations, respondent No. 1 agreed to resume cohabitation. He also admits that the parents of respondent No. 1 had brought her to a hotel in Osmanabad before he could take her along with him. It appears that on the birthday of their daughter, both of them were driven out of the house around 01.00 a.m. by the parents of the petitioner, and this fact has been admitted. Thereafter, the petitioner, respondent No. 1, and their daughter went to Osmanabad to reside in the house of the petitioner's friend. It appears that he has intentionally not disclosed as to what had happened and what was the reason that his parents had driven them out of the house. It has not been brought on record that he has preferred any appeal challenging the order under the Domestic Violence Act and that the finding of the Trial Court regarding subjecting respondent No. 1 to cruelty or using domestic violence against her has been reversed. When the finding of a competent Court is in existence, it will have to be taken that there was a reasonable ground for respondent 913-FCA-70-23.odt {8} No. 1 to stay away from the petitioner. It cannot then be stated that she has treated the petitioner with cruelty.

12. As regards the allegation of illicit relations, though the petitioner and his brother have spoken on the point, it is only oral evidence. It has come on record that the petitioner appears to have placed the CDR on record and had also given an application to examine the concerned person; however, thereafter he did not press the same. The allegations against respondent No. 2 are, therefore, vague and not supported by any evidence. When documentary evidence was available, we cannot rely upon oral evidence in the absence of proof of the documentary evidence.

13. Taking into consideration all these aspects, the trial Court has properly scrutinized the evidence, and therefore, the findings arrived at are correct and legal. We are also answering the points in the negative. We do not find any merit in the present appeal. Hence, the appeal stands dismissed.

[HITEN S. VENEGAVKAR]
JUDGE

[SMT. VIBHA KANKANWADI]
JUDGE

S P Rane